

CHAPTER 11.

An Act to provide, during Twelve Months, for the
Discipline and Regulation of the Army and the
Air Force. [13th April 1933.]

WHEREAS the raising or keeping of a standing army within the United Kingdom in time of peace, unless it be with the consent of Parliament, is against law :

And whereas it is adjudged necessary by His Majesty and this present Parliament that a body of land forces should be continued for the safety of the United Kingdom and the defence of the possessions of His Majesty's Crown, and that the whole number of such forces should consist of one hundred and forty-eight thousand seven hundred, including those to be employed at the depots in the United Kingdom for the training of recruits for service at home and abroad, but exclusive of the numbers actually serving within His Majesty's Indian possessions, other than Aden :

And whereas under the Air Force (Constitution) Act, 1917, His Majesty is entitled to raise and maintain the air force, and it is judged necessary that the whole number of such force should consist of thirty-one thousand, including those employed as aforesaid, but exclusive of the numbers serving as aforesaid : 7 & 8 Geo. 5
c. 51.

And whereas it is also judged necessary for the safety of the United Kingdom and the defence of the possessions of this realm that a body of Royal Marine forces should be employed in His Majesty's fleet and naval service under the direction of the Lord High Admiral of the United Kingdom, or the Commissioners for executing the office of Lord High Admiral aforesaid :

And whereas the said marine forces may frequently be quartered or be on shore, or sent to do duty or be on board transport ships or vessels, merchant ships or vessels, or other ships or vessels, or they may be under other circumstances in which they will not be subject to the laws relating to the government of His Majesty's forces by sea :

And whereas no man can be forejudged of life or limb, or subjected in time of peace to any kind of

punishment within this realm, by martial law, or in any other manner than by the judgment of his peers and according to the known and established laws of this realm; yet, nevertheless, it being requisite, for the retaining all the before-mentioned forces, and other persons subject to military law or to the Air Force Act, in their duty, that an exact discipline be observed and that persons belonging to the said forces who mutiny, or stir up sedition, or desert His Majesty's service, or are guilty of crimes and offences to the prejudice of good order and military or air force discipline, be brought to a more exemplary and speedy punishment than the usual forms of the law will allow :

And whereas the Army Act and the Air Force Act will expire in the year one thousand nine hundred and thirty-three on the following days :—

- (a) In Great Britain and Northern Ireland, the Channel Islands, and the Isle of Man, on the thirtieth day of April; and
- (b) Elsewhere, whether within or without His Majesty's dominions, on the thirty-first day of July :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Short title.

1. This Act may be cited as the Army and Air Force (Annual) Act, 1933.

Army Act
and Air
Force
Act to be in
force for
specified
times.

2.—(1) The Army Act and the Air Force Act shall be and remain in force during the periods hereinafter mentioned, and no longer, unless otherwise provided by Parliament, that is to say :—

- (a) Within Great Britain and Northern Ireland, the Channel Islands, and the Isle of Man, from the thirtieth day of April, one thousand nine hundred and thirty-three, to the thirtieth day of April, one thousand nine hundred and thirty-four, both inclusive; and
- (b) Elsewhere, whether within or without His Majesty's dominions, from the thirty-first day

of July, one thousand nine hundred and thirty-three, to the thirty-first day of July, one thousand nine hundred and thirty-four, both inclusive.

(2) The Army Act and the Air Force Act, while in force, shall apply to persons subject to military law or to the Air Force Act, as the case may be, whether within or without His Majesty's dominions.

(3) A person subject to military law or to the Air Force Act shall not be exempted from the provisions of the Army Act or Air Force Act by reason only that the number of the forces for the time being in the service of His Majesty, exclusive of the marine forces, is either greater or less than the numbers hereinbefore mentioned.

3. There shall be paid to the keeper of a victualling house for the accommodation provided by him in pursuance of the Army Act or the Air Force Act the prices specified in the Schedule to this Act.

Prices in
respect of
billeting.

AMENDMENTS OF THE AIR FORCE ACT.

4.—(1) After section one hundred and eighty-four A of the Air Force Act, there shall be inserted the following section :—

“184B. When a body of the regular, reserve, or auxiliary air force and a body of an air force raised in India are serving together under such conditions as may be prescribed by regulations made by the Air Council and the Governor-General of India, a member of either body shall, if it is so provided by the regulations, but subject to any exceptions or limitations specified therein, have the like powers of command over members of the other body as if he were a member of that body holding relative rank.

Relations
between
Royal Air
Force and
Indian Air
Force, and
attachment
of personnel.

For the purposes of this section, the relative rank of members of different forces shall be such as may be provided by regulations made as aforesaid.”

(2) In paragraph (11) of section one hundred and seventy-five and paragraph (8A) of section one hundred and seventy-six of the Air Force Act (which sections

relate to the persons subject to the Air Force Act as officers and airmen respectively) the words "India or" shall be omitted, and after the said paragraphs (11) and (8A) respectively there shall be inserted the following paragraphs,—

"(11A) All officers belonging to an air force raised in India, when attached to or doing duty with any portion of the regular, reserve, or auxiliary air force outside India, subject, however, to such exceptions as may be prescribed by regulations made by the Air Council and the Governor-General of India."

"(8B) All non-commissioned officers and men belonging to a force raised in India, when attached to, or otherwise acting as part of, or with, any portion of the regular, reserve, or auxiliary air force outside India, subject, however, to such exceptions as may be prescribed by regulations made by the Air Council and the Governor-General of India."

(3) In section one hundred and seventy-seven of the Air Force Act (which relates to persons belonging to Indian and Colonial forces) for the words from "This section shall not apply" to the end of the section there shall be substituted the following proviso:—

"Provided that—

- (i) this section shall not apply to any officer, non-commissioned officer or man of or belonging to any such force who is for the time being subject to this Act by virtue of paragraph (11) or paragraph (11A) of section one hundred and seventy-five or paragraph (8A) or paragraph (8B) of section one hundred and seventy-six of this Act; and
- (ii) powers of command, when forces are serving together, shall, so far as provision in that behalf is made by regulations under section one hundred and eighty-four B of this Act, be determined by those regulations."

(4) In paragraph (4) of section one hundred and ninety of the Air Force Act (which paragraph defines the expression "officer"), after the words "(d) any officer

of a Dominion force" there shall be inserted the words
"or of a force raised in India."

(5) Notwithstanding anything in section fifteen of
the Army and Air Force (Annual) Act, 1932, this section 22 & 23
shall come into operation in all places on the thirtieth Geo. 5. c. 22.
day of April, one thousand nine hundred and thirty-
three.

SCHEDULE.

Section 3.

PRICES IN RESPECT OF BILLETING

Accommodation to be provided.	Maximum price.
Lodging and attendance for a soldier where meals furnished.	Tenpence a night for the first soldier and eightpence a night for each additional soldier.
Breakfast as specified in Part I. of the Second Schedule to the Army Act.	Sevenpence each.
Dinner as so specified - - - -	Tenpence.
Supper as so specified - - - -	Fourpence.
Where no meals furnished, lodging and attendance, and candles, vinegar, salt, and the use of fire, and the necessary utensils for dressing and eating his meat.	Tenpence a night for the first soldier and eightpence a night for each additional soldier.
Stable room and ten pounds of oats, twelve pounds of hay, and eight pounds of straw a day for each horse.	Two shillings and threepence a day.
Stable room without forage - - -	Sixpence a day.
Lodging and attendance for an officer -	Three shillings a night.

Note.—An officer shall pay for his food.

In the application of this Schedule to the Air Force, references to the Air Force Act and to an airman shall be substituted for references to the Army Act and to a soldier.